

IN THE MATTER OF:

DIA NO. 99DPHSW021

JEFFREY L. REED

PROPOSED FINDINGS OF FACT,
CONCLUSIONS OF LAW,
DECISION AND ORDER

On July 27, 1999, the Iowa Board of Social Work Examiners (Board) denied the application of Jeffrey L. Reed (Applicant) for a license to practice social work at the master's level. The Applicant appealed, and a Notice of Hearing was issued on November 10, 1999.

After hearing oral argument immediately prior the commencement of the hearing, the Board granted the Applicant's request to have his appeal heard by an administrative law judge, pursuant to 645 IAC 11.9. The hearing was held before the undersigned administrative law judge on December 15, 1999 at approximately 2:00 p.m. in the fifth floor conference room, Lucas State Office Building, Des Moines, Iowa. The Applicant appeared and was not represented by counsel. The state was represented by Heather Adams, Assistant Attorney General. The hearing was tape recorded. The hearing was open to the public, pursuant to Iowa Code section 272C.6(1)(1999) and 645 IAC 11.19(10).

THE RECORD

The record includes the Notice of Hearing, Request for Administrative Law Judge, Resistance to Request for Administrative Law Judge, the testimony of the witness, and the following exhibits:

State Exhibit A: Iowa Code section 154C.6

State Exhibit B: Iowa Code section 154C.1

State Exhibit C: Application and accompanying materials

State Exhibit D: Denial Letter, 7/27/99

FINDINGS OF FACT

1. On June 30, 1998, the Applicant filed his application for licensure to practice as a social worker at the master's level. The application was denied on the grounds that the Board was not able to determine that he was employed performing master level social work duties as of July 1, 1996, from the correspondence submitted in lieu of a job description. (Testimony of Applicant; State Exhibits C, D)

2. The Applicant earned a Bachelor of Business Administration Degree from the University of Iowa in 1988. (Testimony of Applicant; State Exhibit C)

3. The Applicant accepted employment with the Iowa Department of Human Services in July 1989 as a Social Worker II. He was employed in this position as of July 1, 1996. On his application, the Applicant provides the following description of his social work practice: "Psychosocial assessment, diagnosis, and treatment including P/S history, assess individual and environment strengths, weaknesses, effects, administer psychological testing, assign diagnosis, differential treatment plan, monitor progress and arrange interdisciplinary collaboration for treatment consulting." (Testimony of Applicant; State Exhibit C)

4. The Applicant provided a written job description for the Social Worker 2 position. The written job description provides that the social worker performs professional social work within guidelines, including providing basic social work services and placement services for dependent, neglected and delinquent children who have been committed to institutions, to assist in facilitating their reintegration into the community; serve as a member of an institutional interdisciplinary treatment team, provides casework and group work services, perform outreach activities gathering and evaluating information regarding clients or programs, developing and assistance or treatment program, and coordinating activities with relevant community agencies. (Testimony of Applicant; State Exhibit C)

5. The qualifications for the Social Worker 2 position include a bachelor's degree and one year of full time experience or a master's degree and no experience. (Testimony of Applicant; State Exhibit C)

6. The Applicant testified that as of July 1, 1996, he was assigned as a Social Worker 2 to Medicaid Case Management, working with mentally retarded and developmentally delayed individuals. Any cases involving mental health issues or dual diagnoses were assigned to him. The state does not allow Social Worker 2's to perform diagnosis. The Applicant performed psychosocial evaluations and referred clients out for diagnosis and treatment. (Testimony of Applicant)

7. In addition to this full time employment as a Social Worker 2, the Applicant believes that the Board should consider his position in the U.S. Navy as a senior psychiatric technician, when it determines whether he was employed performing master level social work duties as of July 1, 1996.

a) The Applicant was on active duty in the U.S. Navy from July 6, 1980 until September 6, 1984. He received 28 weeks of

training at the Naval School of Health Sciences Hospital Corpsman School, as well as on the job training. Thirteen weeks of this training was specific to mental health.

b) Since 1984, the Applicant has been in the U.S. Navy Reserves and has served two weeks of active duty each year. As of July 1, 1996 the Applicant continued to serve at least two weeks' active duty annually as a senior psychiatric technician in the U.S. Navy Reserves. In addition, he serves one weekend each month.

c) On his application, the Applicant describes his duties as a Chief Neuropsychiatric Technician as including individual and group family therapy; psychosocial history; assess individual and environment strengths, weakness, effects; administer psychological testing, assign diagnosis, differential treatment plan, monitor progress, and arrange interdisciplinary collaboration for treatment consulting.

d) The Applicant was unable to produce a written job description for his position with the U.S. Navy. In lieu of a written job description, the Applicant submitted a letter from his commanding officer. In that letter, the commanding officer states that Hospital Corpsman conduct medical sick call, assign diagnoses, and prescribe treatment, including medication. He further stated that the Applicant's duties as a Psychiatric Technician included completing psychosocial histories, evaluating the patient environment, completing psychological testing and personality inventories, and assigning diagnosis as per the Diagnostic Statistics Manual 4th Edition (DSM IV). The commander further stated that the Applicant provides counseling including individual, family and group therapy. The commander estimated that the Applicant works approximately 280 hours per year in this capacity.

(Testimony of Applicant; State Exhibit C)

8. The Applicant testified that in his position as Senior Psychiatric Technician he is authorized to diagnose and prescribe medication to navy personnel. The Applicant testified that he does assign diagnoses using the DSM-IV, but he was unable to name any of the axes of the DSM-IV. In addition, the Applicant was unfamiliar with the acronym GAF. The Applicant testified that he uses questionnaires and mental health testing in diagnosis, and then looks up the criteria to find a match. He testified that he is most familiar with the substance abuse diagnoses. If a diagnosis is assigned, the person would no longer be considered fit for service and is then referred for treatment elsewhere. (Testimony of Applicant)

9. The Applicant was questioned about what type of treatment he

is able to provide if he is only on active duty for two weeks at a time. The Applicant explained that the treatment he provides would be primarily stress management techniques and may be similar to the type of treatment offered in Employee Assistance Programs. The Applicant does not utilize any particular type of therapy. He testified that he uses a "combination of different schools of thought." (Testimony of Applicant)

CONCLUSIONS OF LAW

In 1996, the Iowa legislature passed legislation mandating licensure for social workers in Iowa and specifying requirements for three levels of permanent licensure: bachelor social worker, master social worker, and independent social worker. Iowa Code section 154C.3. Requirements for licensure at the master level include possession of a master's or doctoral degree in social work and an examination. Iowa Code section 154C.3(1)(b)(1997).

However, the legislature also provided transitional or grand-parenting provisions for applicants who have practiced social work for a certain period of time at a certain level. These transition provisions are found at Iowa Code section 154C.6 and allow exemptions from certain license requirements for qualified applicants who submit their applications prior to July 1, 1998. The Applicant has applied for licensure at the master level under these exemption provisions.

Iowa Code section 154C.6(2)(1997) provides, in relevant part:

2. *Master social worker.* An applicant for a license as a master social worker shall present evidence satisfactory to the board of any of the following:

...
c. That the applicant is employed performing master level social work duties as defined in section 154C.1; subsection 3, paragraph "b", as of July 1, 1996, and has four thousand hours of employment experience in the practice of social work as of July 1, 1998.

Iowa Code section 154C.1(3)(b) provides, in relevant part:

3. "*Practice of social work*" means the professional activity of licensees which is directed at enhancing or restoring people's capacity for social functioning, whether impaired by environmental, emotional, or physical factors, with particular attention to the person-in-situation configuration. The social work profession represents a body of knowledge requiring progressively more sophisticated analytic and intervention skills, and includes the application of psychosocial theory methods to individuals, couples, families, groups, and com-

munities. The practice of social work does not include the making of a medical diagnosis, or the treatment of conditions or disorder of biological etiology which involve psychosocial aspects and conditions. The practice of social work for each of the categories of social work licensure includes the following:

a. Bachelor social workers provide psychosocial assessment and intervention through direct contact with clients or referral of clients to other qualified resources for assistance, including but not limited to performance of social histories, problem identification, establishment of goals and monitoring of progress, interviewing techniques, counseling, social work administration, supervision, evaluation, interdisciplinary consultation and collaboration and research of service delivery including development and implementation of organizational policies and procedures in program management.

b. Master social workers are qualified to perform the practice of bachelor social workers and provide psychosocial assessment, diagnosis, and treatment, including but not limited to performance of psychosocial histories, problem identification and evaluation of symptoms and behavior, assessment of psychosocial and behavioral strengths and weaknesses, effects of the environment on behavior, psychosocial therapy with individuals, couples, families, and groups, establishment of treatment goals and monitoring progress, differential treatment planning, and interdisciplinary consultation and collaboration.

The Applicant has provided satisfactory proof of four thousand hours of employment in the practice of social work. The relevant issue before the Board was whether the Applicant was "employed performing master level social work duties as defined in section 154C.1, subsection 3, paragraph "b", as of July 1, 1996." (Emphasis added). By establishing the transitional provisions for licensure which allow qualified applicants an exemption from the requirements for permanent licensure found at Iowa Code section 154C.3, the legislature has given the Board discretion in reviewing the job duties performed by applicants and determining whether the applicant was, in fact, engaged in master level duties as of July 1, 1996.

The Board has been required to review numerous job descriptions and qualifications in order to determine which applicants qualify for master level licensure under the transition provisions drafted by the legislature. The Board has had to distinguish between those positions which require the performance of master level social work and those positions which can be performed by experienced and

qualified bachelor level social workers. The Board has been assigned the very difficult task of evaluating somewhat subjective information and deciding where to draw a line. For each individual applicant, the Board has examined the job duties and written job description for the position held by the individual as of July 1, 1996, and has also considered the minimum educational and experience requirements for that position.

The Applicant presented insufficient evidence to establish that he was employed performing master level social work duties as of July 1, 1996. As of July 1, 1996, the Applicant was employed full time as a Social Worker 2 for the Iowa Department of Human Services. This is the employment that is relevant to the decision in this case.

Based on the documentation provided by the Applicant and based upon his testimony, it is clear that the Applicant did not provide diagnosis or psychosocial therapy in his position as a Social Worker 2. Master level social workers perform all of the duties of a bachelor social worker, but they also perform diagnosis and psychosocial therapy. Iowa Code section 154C.1(3)(a) and (b)(1997). The Applicant performed neither in his full time position as a Social Worker 2 for the Iowa Department of Human Services.

In addition, the academic and work experience qualifications for the Social Worker 2 position also support the conclusion that this was a bachelor level social work position. The position only requires a bachelor's degree in social work, sociology, psychology, family relations and one year experience or a master's degree with no experience. This is not the type of academic preparation and experience which is typical of a master level position.

The Applicant also contends that he was employed performing master level social work duties as of July 1, 1996 in his position as a Senior Psychiatric Technician with the U.S. Navy Reserves. Since July 1, 1996, the Applicant has been on full time active duty with the U.S. Navy Reserves for approximately two weeks each year. The Applicant contends that he has assigned diagnoses, using DSM-IV, during these periods of active duty and has performed the other master level social work duties defined by statute.

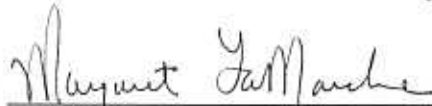
However, the Applicant's testimony failed to support his contention. The Applicant's testimony revealed that he is in fact unfamiliar with the DSM-IV, was unable to name any of the axes of the DSM-IV, and was unfamiliar with the GAF. In addition, the Applicant concedes that the treatment that he provides during his two week periods of active duty is primarily stress management techniques, which would be counseling, not psychosocial therapy. The Appellant admits that any person who is diagnosed and requires treatment is referred elsewhere for treatment.

The preponderance of the evidence does not support the conclusion that the Applicant was employed performing master level social work duties, as defined at Iowa Code section 154C.1(3)"b", as of July 1, 1996. The Applicant is eligible for licensure at the bachelor's level under the transition provisions.

DECISION AND ORDER

IT IS THEREFORE ORDERED, that the application for a license to practice social work at the master's level, filed by Jeffrey L. Reed, pursuant to the transition provisions found at Iowa Code section 154C.6, is hereby DENIED.

Dated this 14th day of January, 2000.



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Administrative Law Judge
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(CERTIFIED)

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Pursuant to 645 IAC 11.9(5), this proposed decision may be appealed to the Iowa Board of Social Work Examiners within ten (10) days of the date of issuance of the proposed decision. A party must seek appeal to the board in order to exhaust adequate administrative remedies.